

The Case Management Conference is continued to September 24, 2026 at 1:30 p.m. to be heard along with the Motion to Compel Arbitration.

In California, a waiver of attorney client privilege/work product doctrine may be accomplished by: 1) disclosing privileged communication in a non-confidential context (Evid. Code §912 (a).; 2) failing to claim privilege in a proceeding where the holder has the legal standing and opportunity to do so (*Ibid.*); and 3) failing to assert the privilege in a timely response to inspection demand. (Code Civ. Proc. §2031.300(a); *see also Catalina Island Yacht Club v. Sup. Ct.* (2015) 242 Cal.App.4th 1116, 1126.) The failure to include an objection based on attorney client privilege/work product doctrine in the initial responses to discovery results in waiver. (*Scottsdale Ins. Co. v. Sup. Ct.* (1997) 59 Cal.App.4th 273, 274.) The objection must be specific and, if an objection is based on a claim of privilege, the particular privilege invoked shall be stated. (Code Civ. Proc. §2031.240(b)(2).) The objection must expressly state if it is based on the claim that the information sought is protected work product. (*Ibid.*) Objections that are not asserted in the response are not preserved. (*Scottsdale Ins. Co v. Sup Ct.*, 59 Cal.App.4th at 268.) When a party fails to serve timely responses to discovery, that party waives any objection to the demand, including one based on privilege or the protection of work product. (Code Civ. Proc. §2031.300(a).) Pursuant to section 2031.300(a) a court, on motion, may relieve a party from the waiver of attorney client privilege/work product doctrine upon its determination that 1) the party has subsequently served a response that is substantially compliant with the relevant statute, and 2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Here, the court has already ruled on the question of whether there has been waiver of the attorney-client privilege or work product doctrine as of July 31, 2026.

It appears from the arguments presented here there is a conflation between the waiver of objections for failing to either a) assert the privilege/doctrine in the response or b) not providing responses timely or without authorized extension and waiving the privilege/doctrine in itself. Where there has been inadvertent disclosure of privileged documents, and that such